

Birth leave quick guide

Customer service Belgium, SME desk

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Applies to	Belgian employees, private sector

Use this one-page guide when an employer or employee calls about birth leave (geboorteverlof / congé de naissance). For the registration steps in Payroll for kmo, see the working instruction "Werkinstructie geboorteverlof".

The short answer

A father or co-parent gets **15 days** of birth leave. The employer pays the first 3 days at full salary. The health insurance fund (mutualiteit / mutualité) pays the other 12 days at 82% of the capped gross salary.

Key facts

Question	Answer
How many days?	15 days (births from 1 January 2021)
Who pays days 1 to 3?	The employer, 100% of normal pay
Who pays days 4 to 15?	The mutualiteit, 82% of capped gross pay
When must it be taken?	Within 4 months of the birth
In one block?	No, the employee may split the days
Can the employer refuse?	No. It is a right, the employee chooses the dates
Who has to inform whom?	The employee informs the employer in advance

Who is entitled

- The father of the child.
- The co-parent: the partner of the mother who is married to her, is her legal cohabitant, or has lived with her without interruption for at least three years.

There is no minimum period of service. Part time staff are entitled too.

Typical call, step by step

1. Ask for the employee name and the date of birth of the child.

2. Confirm the 15 days and the split: 3 days paid by the employer, 12 days by the mutualiteit.
3. Explain that the employee applies to the mutualiteit himself, with a copy of the birth certificate.
The benefit is not paid through the payslip.
4. Check that the dates fall within 4 months of the birth.
5. If the customer wants us to register the leave, log a ticket with the dates and follow the working instruction.

Common mistakes

- **All days paid by the employer.** Only 3 days are employer paid. If a payslip shows 15 days of normal pay, the absence code is wrong.
- **Confusing birth leave with maternity leave.** Maternity leave (moederschapsrust) is for the mother and is a different scheme.
- **Carrying days over.** Days not taken within 4 months are lost. They are not paid out.

Questions from employees

We only answer employees of customers that use the employee helpdesk option. Otherwise refer them to their own HR department.

Escalation

Unusual situations (adoption, multiple births, stillbirth, a co-parent who is not a partner of the mother) go to the Legal knowledge centre Belgium.

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